

# PIP Interaction and Documentation Guide

NovaPack Sdn Bhd

Document Reference: HR-GUIDE-001

Version: 1.0

Effective Date: 1 January 2024

For use by: Line Managers and HR Practitioners

Classification: Internal Use Only

This guide covers the seven interaction types that occur during a Performance Improvement Plan (PIP) at NovaPack Sdn Bhd. For each interaction, it provides a conversation guide, a documentation standard, and legal risk indicators designed to support evidence collection. All interactions must be conducted in accordance with the NovaPack Performance Management Policy (HR-POL-001), the PIP Template (HR-FORM-017), and the Disciplinary and Termination Policy (HR-POL-003).

The Industrial Court of Malaysia has consistently held that employers who maintain contemporaneous, objective, and complete records are best positioned to defend dismissal decisions. The guidance in this document is structured to meet that standard.

| # | Interaction Type                   | Formal? | HR Required? | Key Record                       |
|---|------------------------------------|---------|--------------|----------------------------------|
| 1 | Pre-PIP Coaching Conversation      | No      | No           | Written note and follow-up email |
| 2 | PIP Initiation Meeting             | Yes     | Mandatory    | HR-FORM-017 and Meeting Record   |
| 3 | Bi-Weekly Check-In Meeting         | Yes     | Recommended  | HR-FORM-018 Review Record        |
| 4 | Support and Resource Discussion    | Yes     | Recommended  | HR-FORM-019 Support Log          |
| 5 | Show-Cause or Warning Conversation | Yes     | Mandatory    | Show-Cause Letter and Response   |
| 6 | Final PIP Review Meeting           | Yes     | Mandatory    | Final Assessment Record          |
| 7 | Post-PIP Outcome Meeting           | Yes     | Mandatory    | Outcome Meeting Record           |

## Interaction 1 | Pre-PIP Coaching Conversation

### Purpose

An informal conversation between the line manager and the employee when a performance concern is first identified. This interaction does not trigger formal proceedings but creates the foundation of the evidence trail. It is the manager's first opportunity to communicate the concern clearly and give the employee a chance to respond.

### Conversation Guide

This is an informal meeting. The tone should be supportive and direct, not accusatory. The manager must state the specific concern, not a general dissatisfaction.

**Manager:** *I wanted to have an informal chat to talk through something I have noticed over the past few weeks. I want to be open with you because I think it is better to address this early.*

**Manager:** *The specific concern is [describe the KPI or behaviour with data]. For example, your output for the past three months has averaged [X], against a target of [Y].*

**Manager:** *I want to understand if there is anything on your side that has contributed to this. Is there anything I should know about?*

**Manager:** *I want to be clear that I am not placing any formal action on the table right now. I am raising this early because I want to support you in getting back on track.*

**Manager:** *Let us agree on what improvement looks like over the next [four to six weeks] and check in again on [date].*

## Do

Do: Reference specific data, dates, and measurable gaps.

Do: Allow the employee to respond fully before moving to solutions.

Do: Agree a clear informal target and a follow-up date.

Do: Keep the tone collaborative and developmental.

## Avoid

Avoid: Using vague language such as 'attitude' or 'not meeting expectations' without specifics.

Avoid: Implying that termination is being considered at this stage.

Avoid: Discussing the employee's performance with other team members.

Avoid: Making verbal commitments about outcomes you cannot guarantee.

## Documentation Standard

Although this interaction is informal, it must be documented immediately after the meeting. A contemporaneous written note is the only record the Industrial Court will treat as credible evidence of early warning.

|                   |                                                                                              |
|-------------------|----------------------------------------------------------------------------------------------|
| Date and Time     | Record the exact date, time, and location of the conversation.                               |
| Attendees         | Full name and job title of the manager and employee.                                         |
| Concern Raised    | Describe the specific performance concern with reference to KPI, target, and actual figures. |
| Employee Response | Record the employee's explanation or response in their own words, as accurately as possible. |
| Informal Target   | State the specific improvement expected and the timeframe agreed.                            |
| Follow-up Date    | Record the date of the next check-in.                                                        |
| Manager Signature | Signed and dated by the manager on the day of the conversation.                              |

**Note:** *Send a follow-up email to the employee summarising the discussion within 24 hours. Retain a copy of the email. This creates a timestamped record that the conversation occurred.*

## Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Absence of any early warning record is the single most common reason employers lose poor performance cases at the Industrial Court. If the PIP is later issued without evidence of prior communication, the Court will infer the PIP was not genuine.

**Evidence:** Retain the written note, the follow-up email, and any email chain that preceded the conversation. Date and file all documents immediately.

**Legal Risk:** Verbal warnings that are not followed up in writing carry no evidential weight. A manager who says 'I told him many times' without documentation will not be believed.

**Evidence:** The follow-up email serves as the timestamped proof of the conversation. Use your corporate email account, not a personal one.

---

## Interaction 2 | PIP Initiation Meeting

### Purpose

The formal meeting at which the manager presents the PIP to the employee, explains its purpose and consequences, and obtains acknowledgement. This is the most legally significant meeting in the entire process. Everything said and done here will be scrutinised if the matter reaches the Industrial Court.

### Conversation Guide

HR must be present at this meeting. The meeting should be scheduled in advance with at least two working days notice. The PIP document (HR-FORM-017) must be prepared and reviewed by HR before the meeting takes place.

**Manager:** *Thank you for coming in. I have asked [HR name] to join us today. This is a formal meeting and we will be giving you a document to take away with you.*

**Manager:** *As you know, we have discussed your performance on [reference previous coaching conversation dates]. Despite those conversations, we have not seen the improvement we need, and your most recent performance rating was [rating].*

**Manager:** *As a result, we are placing you on a Performance Improvement Plan. The purpose of this plan is not to push you out. It is a structured process to give you a clear and supported opportunity to reach the required standard.*

**HR:** *I want to be transparent with you. This is a formal process. The PIP will run for 90 days. If the objectives in this plan are not met within that period, further action may follow, which could include termination of your employment. You have the right to raise any concerns through the grievance process at any time.*

**Manager:** *Let me walk you through the plan now. [Review each section: performance concerns, objectives, success criteria, support available, and review schedule].*

**Manager:** *Do you have any questions or anything you want to raise at this stage?*

**Manager:** *We would like you to sign the acknowledgement section to confirm you have received and understood this document. Signing does not mean you agree with the assessment. You have the right to note any disagreement in the comments field.*

### Do

- Do: Have HR present throughout the meeting.
- Do: Walk through every section of the PIP document in detail.
- Do: State explicitly that termination is a possible consequence of failure.
- Do: Allow the employee time to read the document and ask questions.
- Do: Offer the employee the option to have a colleague accompany them.
- Do: Record the meeting in writing immediately after.

### Avoid

- Avoid: Presenting the PIP as a formality or a box-ticking exercise.
- Avoid: Making reassuring statements that undermine the consequence clause.
- Avoid: Rushing the employee through the document without explanation.
- Avoid: Allowing the meeting to become confrontational or emotional without a short recess.
- Avoid: Proceeding without HR present.

### Documentation Standard

The PIP document itself (HR-FORM-017) is the primary record. In addition, a separate Meeting Record must be completed by HR immediately after the meeting.

|                      |                                                                             |
|----------------------|-----------------------------------------------------------------------------|
| Date and Time        | Exact date, time, and room of the meeting.                                  |
| Attendees            | Full names and roles of all present, including HR.                          |
| Documents Issued     | Reference number and version of the PIP document issued.                    |
| Key Points Discussed | Summarise what was explained, including the consequence clause.             |
| Employee Response    | Record the employee's reaction and any points they raised.                  |
| Outcome of Signing   | Record whether the employee signed, declined, or requested time to respond. |
| Next Steps           | Date of first review meeting and name of supporting manager or mentor.      |
| Signed by HR         | HR representative signs and dates the record on the day.                    |

**Note:** If the employee declines to sign the PIP, the HR representative must record the refusal on the form and have a second witness countersign. Issue a copy of the PIP to the employee by email on the same day to establish receipt.

---

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Failure to state the termination consequence at this meeting is one of the three primary reasons employers lose PIP-related cases, as established in *Tung Yoke Leng v Maxis Broadband Sdn Bhd*.

**Evidence:** The consequence clause must appear in writing in the PIP document and must be verbally explained during the meeting. The Meeting Record must confirm that this was communicated.

**Legal Risk:** Proceeding without HR present creates the risk that the employee later disputes what was said, with no independent witness.

**Evidence:** HR attendance is mandatory. The HR representative's signature on the Meeting Record is the independent corroboration.

**Legal Risk:** Issuing a PIP immediately after a negative event, such as a complaint by the employee or a change in leadership, without prior warning records, may be characterised as retaliatory, as seen in *Thomas Kuruvilla v MDEC*.

**Evidence:** The Pre-PIP coaching records (Interaction 1) must predate the PIP by a reasonable period. Ensure those records are on file before proceeding.

---

## Interaction 3 | Bi-Weekly Check-In Meeting

### Purpose

A regular structured progress review held during the PIP period. These meetings serve two purposes: to genuinely support the employee and to create a contemporaneous record of progress or continued underperformance at each stage of the PIP. These records are the backbone of the employer's case if the matter reaches the Industrial Court.

### Conversation Guide

Each check-in should follow a consistent structure. Inconsistency in how meetings are conducted will be used by the employee's representative to argue the process was not genuine. The manager must review the objectives table from HR-FORM-017 at every meeting.

**Manager:** *Let us go through each of your PIP objectives one by one and look at where you are against the targets.*

**Manager:** *For objective one, the target was [X] by [date]. Where are you currently?*

**Manager:** *What support have you received this week and has it been useful?*

**Manager:** *Is there anything that is blocking you from meeting the target that is within the Company's control to address?*

**Manager:** *Based on where you are today, here is my assessment of your progress: [describe clearly whether progress is on track, partially on track, or insufficient].*

**Manager:** *The next check-in is on [date]. Between now and then, the specific focus area is [X].*

### Do

Do: Review every objective from HR-FORM-017 at each meeting, not just the ones with problems.

Do: Record progress with quantitative data where possible.

Do: Document any support provided by the Company since the last meeting.

Do: Record the employee's own assessment alongside the manager's assessment.

Do: Complete the Meeting Record on the same day as the meeting.

### Avoid

Avoid: Holding check-ins informally without documentation.

Avoid: Cancelling or rescheduling check-ins without a documented reason.

Avoid: Changing the objectives mid-PIP without written agreement from HR and the employee.

Avoid: Using check-in notes to record only negatives and omitting progress made.

### Documentation Standard

Each check-in must be recorded on the PIP Review Meeting Record (HR-FORM-018). The record must be completed on the day of the meeting and signed by both the manager and the employee.

|                |                                                         |
|----------------|---------------------------------------------------------|
| Meeting Number | For example: Check-in 1 of 6, Week 2.                   |
| Date and Time  | Exact date and time.                                    |
| Attendees      | Manager and employee. Note if employee was accompanied. |

|                           |                                                                                                                   |
|---------------------------|-------------------------------------------------------------------------------------------------------------------|
| <b>Objective Review</b>   | <i>For each PIP objective: state the target, current status, and whether it is on track, at risk, or not met.</i> |
| <b>Support Provided</b>   | <i>List all support delivered by the Company since the last check-in.</i>                                         |
| <b>Blockers Raised</b>    | <i>Record any issues raised by the employee and the manager's response.</i>                                       |
| <b>Manager Assessment</b> | <i>Overall progress rating: Satisfactory / Needs Improvement / Insufficient.</i>                                  |
| <b>Employee Comments</b>  | <i>The employee's own view of their progress, in their words.</i>                                                 |
| <b>Agreed Focus</b>       | <i>Specific actions or targets agreed for the period until the next check-in.</i>                                 |
| <b>Signatures</b>         | <i>Signed by both manager and employee on the day. If employee declines, note the refusal.</i>                    |

**Note:** Missing check-in records will be treated by the Industrial Court as evidence that the check-ins did not occur. Consistency of documentation across all six check-ins is as important as the content of any single record.

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Cancelled check-in meetings without documented reasons will be used by the employee to argue the company was not genuinely invested in their improvement, as flagged in *Felicia Aping Laing v Ericsson (Malaysia) Sdn Bhd*.

**Evidence:** If a meeting must be rescheduled, send an email confirming the new date immediately. Retain that email. The gap between meetings must not exceed two weeks without documented justification.

**Legal Risk:** Recording only failures without acknowledging any progress, even partial progress, undermines the credibility of the entire record set and suggests bad faith.

**Evidence:** Be factual and balanced. If objective one is on track and objective two is not, say so. Balanced records are more credible than uniformly negative ones.

**Legal Risk:** Changing PIP objectives during the plan without the employee's written agreement can be construed as moving the goalposts to ensure failure.

**Evidence:** Any change to objectives must be documented as a written amendment to HR-FORM-017, signed by both parties and countersigned by HR.

## Interaction 4 | Support and Resource Discussion

### Purpose

A dedicated interaction when the employee requests additional help, or when the manager proactively arranges coaching, training, or resources. This interaction is critical because the Industrial Court assesses whether the support provided was genuine and adequate, not merely whether it was offered on paper.

### Conversation Guide

This interaction may be initiated by either party. When the employee raises a request, the manager must respond constructively and document both the request and the response. A denial of a reasonable resource request during a PIP is a significant legal risk.

**Manager:** *I understand you have raised a concern about [resource or support needed]. I want to address this properly.*

**Manager:** *Can you explain specifically what support you feel would help you meet [the relevant objective]?*

**Manager:** *I have arranged for [specific resource: mentor, training, tool, reduced secondary workload] to be available to you from [date].*

**Manager:** *I want to confirm this in writing so we both have a clear record of what has been committed.*

### Do

Do: Respond to resource requests in writing within three working days.

Do: Document the specific support arranged, the provider, and the start date.

Do: Follow up to confirm the support was actually delivered, not just arranged.

Do: Proactively reduce unreasonable secondary workload if it is affecting PIP performance.

### Avoid

Avoid: Verbally agreeing to support without following through or documenting it.

Avoid: Denying reasonable resource requests without a written explanation.

Avoid: Assigning inexperienced or unavailable mentors as a nominal gesture.

Avoid: Overloading the employee with additional tasks during the PIP period.

### Documentation Standard

Support interactions must be recorded separately from the check-in record. Use the Support and Resource Log (HR-FORM-019) to track every commitment made and its delivery status.

|                                |                                                                    |
|--------------------------------|--------------------------------------------------------------------|
| Date of Request or Arrangement | Date the support was requested or proactively arranged.            |
| Initiated By                   | Employee or manager.                                               |
| Support Requested or Offered   | Describe the specific resource, training, coaching, or adjustment. |
| Company Response               | What was agreed and by whom.                                       |



|                                 |                                                                  |
|---------------------------------|------------------------------------------------------------------|
| <b>Delivery Date</b>            | <i>When the support was actually delivered.</i>                  |
| <b>Delivery Confirmed By</b>    | <i>Who confirmed the support was received and effective.</i>     |
| <b>Employee Acknowledgement</b> | <i>Employee confirms receipt of support in writing or email.</i> |

**Note:** At the final PIP review, the Support and Resource Log is submitted as part of the evidence that the company fulfilled its obligations. Gaps in the log are treated as gaps in delivery.

---

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Assigning inadequate or unavailable support is treated by the Industrial Court as equivalent to providing no support, as seen in the Maxis Broadband case where inexperienced support staff were assigned.

**Evidence:** Confirm the qualifications or experience of any mentor or coach assigned. Retain their attendance records or correspondence with the employee as proof of active engagement.

**Legal Risk:** Denying a reasonable resource request in writing without justification is strong evidence of bad faith and may support a constructive dismissal claim.

**Evidence:** If a request cannot be accommodated, explain why in writing and propose an alternative. Retain the exchange.

**Legal Risk:** Increasing the employee's workload or removing tools they need during the PIP period is the most direct evidence of a predetermined outcome, as established in Felicia Aping Laing v Ericsson.

**Evidence:** Document the employee's workload at the start of the PIP and ensure it does not increase during the plan period. Retain any emails directing the workload.

---

## Interaction 5 | Show-Cause or Warning Conversation

### Purpose

An interaction that occurs when a conduct concern arises during an active PIP. This is separate from the performance process. Conflating conduct and performance in the same conversation without HR guidance is a serious procedural risk. This interaction is governed by the Disciplinary and Termination Policy (HR-POL-003), not the PIP process.

### Conversation Guide

Before initiating this interaction, the manager must consult HR. HR will determine whether the conduct concern is minor (managed within the PIP context) or sufficiently serious to trigger a separate disciplinary process. The two tracks must not be merged without explicit HR direction.

**Manager:** *I need to speak with you about a separate matter from your PIP. This conversation is about [describe the conduct concern specifically].*

**Manager:** *I want to be clear that this is a separate issue from the performance plan we are currently working through. HR is involved in both tracks.*

**HR:** *We are issuing you with a show-cause letter today. You have three working days to respond in writing. Your response will be considered before any further action is taken.*

**HR:** *This process does not affect the PIP timeline unless we advise you otherwise. You should continue to engage with your PIP obligations.*

### Do

Do: Consult HR before raising any conduct matter during an active PIP.

Do: Keep the two processes clearly separate in all documentation.

Do: Issue the show-cause letter in writing with a clear response deadline.

Do: Allow the employee the minimum three working days to respond.

### Avoid

Avoid: Using the show-cause process as a tool to accelerate the PIP exit.

Avoid: Referencing the PIP in the show-cause letter unless HR specifically advises it.

Avoid: Holding the show-cause meeting without HR present.

Avoid: Making any decision on the conduct matter before the employee's written response is received and considered.

### Documentation Standard

The show-cause letter and the employee's written response are the primary records for this interaction. These must be filed separately from the PIP documentation.

|                           |                                                                     |
|---------------------------|---------------------------------------------------------------------|
| Date of Show-Cause Letter | Date issued and method of delivery (hand delivery or email).        |
| Conduct Concern           | Specific description of the alleged conduct with dates and details. |
| Employee Response         | Full text or summary of the employee's written response.            |

|                               |                                                                             |
|-------------------------------|-----------------------------------------------------------------------------|
| <b>Response Received Date</b> | <i>Date the employee's response was received.</i>                           |
| <b>HR Assessment</b>          | <i>HR's determination of next steps based on the response.</i>              |
| <b>Decision and Rationale</b> | <i>What action was taken and why, signed by HR and the Department Head.</i> |

**Note:** *File the show-cause exchange in a separate disciplinary folder from the PIP records. If the matter reaches the Industrial Court, conflated records suggest procedural confusion and weaken both tracks.*

---

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Issuing a show-cause letter shortly after the employee raises a grievance or challenges the PIP may be construed as retaliatory. Timing is scrutinised carefully by the Industrial Court.

**Evidence:** Document the reason for the show-cause initiation independently of any grievance timeline. Ensure the conduct concern is recorded before the grievance was raised, if that is the case.

**Legal Risk:** Failing to consider the employee's show-cause response before proceeding is a breach of natural justice and will render any subsequent disciplinary action procedurally unfair.

**Evidence:** Record the date the response was received and the HR assessment of that response before any decision is made. The two dates must be clearly distinguishable.

---

## Interaction 6 | Final PIP Review Meeting

### Purpose

The formal meeting at the end of the 90-day PIP period to assess whether the employee has met the objectives. This meeting determines the outcome of the PIP and sets the course for what follows. The record produced here is the final piece of the employer's evidence package. It must be meticulous.

### Conversation Guide

HR must be present. The meeting should not be held until the manager has completed a full written assessment of performance against each objective, reviewed by HR, and agreed by the Department Head. Do not enter the meeting without a completed assessment in hand.

**Manager:** *Thank you for joining us. Today marks the end of your 90-day Performance Improvement Plan. I want to go through each objective and share our assessment before we discuss the outcome.*

**Manager:** *For objective one, the target was [X]. The outcome has been [Y]. [Describe evidence: reports, output records, third-party confirmation].*

**Manager:** *[Repeat for each objective with specific data.]*

**Manager:** *Having reviewed all objectives, our overall assessment is [Successful / Unsuccessful / Partially Met, requiring extension].*

**HR:** *The outcome of this assessment is [state clearly]. The next step is [state clearly: closure letter / extension terms / escalation to further action].*

**Manager:** *Do you have any response to the assessment or anything you would like to put on record?*

### Do

Do: Complete the written assessment before the meeting, not during it.

Do: Reference objective evidence for every objective reviewed.

Do: State the outcome clearly and unambiguously.

Do: Allow the employee to respond and record their response in full.

Do: Issue the outcome in writing within five working days.

### Avoid

Avoid: Announcing the outcome without walking through the objective-by-objective assessment.

Avoid: Using subjective language such as 'attitude' or 'not a good fit' without evidential support.

Avoid: Allowing the meeting to conclude without the employee's response being recorded.

Avoid: Delaying the written outcome letter beyond five working days.

### Documentation Standard

The Final PIP Assessment Record must be completed in full by the manager and countersigned by HR and the Department Head before the meeting. It is submitted to the employee during the meeting.

|                 |                                                   |
|-----------------|---------------------------------------------------|
| Assessment Date | Date the assessment was completed by the manager. |
|-----------------|---------------------------------------------------|

|                                      |                                                                                                                            |
|--------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| <b>Objective-by-Objective Review</b> | <i>For each objective: state the target, the evidence of performance, and the outcome (Met / Partially Met / Not Met).</i> |
| <b>Overall PIP Outcome</b>           | <i>Successful / Unsuccessful / Extended. Must be unambiguous.</i>                                                          |
| <b>Evidence Summary</b>              | <i>List all documents supporting the assessment: check-in records, output data, third-party reports.</i>                   |
| <b>Employee Response</b>             | <i>Full record of the employee's response at the meeting.</i>                                                              |
| <b>Next Steps</b>                    | <i>State clearly what happens next and the timeline.</i>                                                                   |
| <b>Signatures</b>                    | <i>Manager, HR, Department Head, and employee. If employee declines to sign, record refusal with witness.</i>              |

**Note:** *The Final PIP Assessment Record, together with all check-in records and the Support and Resource Log, forms the complete evidence package. This package must be retained in its entirety for a minimum of seven years.*

---

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** An outcome of Unsuccessful without an objective-by-objective assessment backed by evidence will not satisfy the just cause and excuse standard under Section 20 of the Industrial Relations Act 1967.

**Evidence:** Attach all supporting evidence directly to the Final Assessment Record before filing. Do not rely on verbal references to evidence that is not in the file.

**Legal Risk:** Failing to allow the employee to respond to the assessment at the final meeting may be construed as a breach of natural justice, particularly if the matter proceeds to a Domestic Inquiry or Industrial Court.

**Evidence:** Record the employee's response verbatim if possible. If the employee is emotional and requests time, allow a short break and reconvene the same day where possible.

---

## Interaction 7 | Post-PIP Outcome Meeting

### Purpose

The final interaction in the PIP cycle, held after the written outcome has been issued. The purpose and content of this meeting differ significantly depending on the outcome: successful closure, extension, or escalation to termination proceedings. Each path requires a different tone, record, and legal consideration.

### Conversation Guide

This meeting must occur after the written outcome letter has been issued and received by the employee. The content of the letter governs what is discussed in the meeting.

**Manager (Successful outcome):** *Your PIP has been formally closed as Successful. This means the PIP is removed from your active HR file. Your performance will continue to be monitored through the regular review cycle. Well done for the work you put in.*

**HR (Extension outcome):** *We have decided to grant you a 30-day extension. The revised objectives are set out in the letter you have received. The same process and documentation standards will apply during the extension period.*

**HR (Unsuccessful outcome):** *As set out in the letter you have received, the outcome of the PIP is Unsuccessful. This matter is now being escalated to the Head of HR and the Department Head. You will receive written communication within five working days regarding the next steps, which may include termination of your employment. You have the right to raise any concerns through the grievance process.*

### Do

Do: Base the entire meeting on the content of the written outcome letter.

Do: Allow the employee to ask questions and record any questions and responses.

Do: For unsuccessful outcomes, refrain from pre-empting the termination decision in this meeting.

Do: For successful outcomes, confirm in writing that the PIP is closed and the record is noted as resolved.

### Avoid

Avoid: Announcing a termination decision in this meeting if the formal approval process has not been completed.

Avoid: Making informal assurances that contradict the written outcome.

Avoid: Combining this meeting with other HR matters to minimise administrative burden.

Avoid: Conducting this meeting without HR present in any outcome scenario.

### Documentation Standard

The Post-PIP Outcome Meeting Record documents the final interaction and is appended to the complete PIP file.

|                         |                                                                              |
|-------------------------|------------------------------------------------------------------------------|
| Outcome Path            | Successful / Extended / Unsuccessful. Must match the written letter exactly. |
| Date of Meeting         | Must be after the written outcome letter was issued and received.            |
| Attendees               | Manager, HR, employee. Note if employee was accompanied.                     |
| Key Points Communicated | Summary of what was explained, referencing the outcome letter.               |

|                         |                                                                        |
|-------------------------|------------------------------------------------------------------------|
| Employee Response       | Full record of the employee's response, including any questions asked. |
| Next Steps Communicated | What the employee was told to expect and by when.                      |
| Signatures              | Manager, HR, and employee. Record any refusal to sign.                 |

**Note:** For Unsuccessful outcomes, retain all seven interaction records together as a single complete package. This package is the employer's defence in any unfair dismissal claim. The completeness and consistency of the package determines the strength of the case.

---

### Legal Risk Indicators and Evidence Guidance

**Legal Risk:** Pre-empting the termination decision in this meeting before formal approval from the Head of HR and Department Head has been obtained may expose the Company to claims that the decision was predetermined.

**Evidence:** Use only the language in the written outcome letter. Do not add verbal qualifications or assurances that are not in the letter.

**Legal Risk:** For Successful PIP outcomes, failure to issue a formal closure letter means the PIP remains open on the employee's file, which may prejudice them in future performance reviews.

**Evidence:** Issue a closure letter within five working days of the Successful outcome. Retain a signed copy. This protects both parties.

---

*This is a fictitious document created for training and demonstration purposes only. NovaPack Sdn Bhd is a fictional company. This document does not constitute legal advice.*